



File No.: EXP202212259 (PA/00009/2023)

RESOLUTION OF THE WARNING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following:

BACKGROUND

FIRST: On 10/10/22, A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection. The complaint was directed against the entity BRAIN IN A VAT INSURANCE, S.L. (hereinafter, the respondent), with CIF: B66830100, owner of the website <https://lapomabikepark.com>, for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR) and Organic Law 3/2018, of December 5, on the Protection of Personal Data.

In the complaint, it is stated that the website in question has a section for customer registration where data is collected through a registration form. It has a section on "Privacy Policy," where the identifying data of a sports association, CLUB CICLISTA BTT PREMIÀ DE DALT, appears, which has nothing to do with the respondent entity (BRAIN IN A VAT INSURANCE, S.L.) and that in the "Legal Notice" of the website, another unrelated entity, "LA POMA TRAILS AND TRACKS SL," which has been dissolved for years, is included as responsible.

SECOND: On 18/11/22, in accordance with the provisions of Article 65.4 of the LOPDGDD Law, the complaint was forwarded to the entity "BRAIN IN A VAT INSURANCE, S.L." for analysis and to inform, within one month, about what was stated in the complaint.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), according to the certificate from the Electronic Notifications Service and Electronic Address, the request sent to the respondent on 18/11/22, through the electronic notifications service "NOTIFIC@", was automatically rejected on 29/11/22.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail, resulting in "Returned to Origin due to Excess," (Not collected at the office) on 27/12/22: 1st Delivery Attempt on 15/12/22 resulted in "absent." 2nd Delivery Attempt on 16/12/22 resulted in "absent." A notice was left in the mailbox.

THIRD: On 18/11/22, in accordance with the provisions of Article 65.4 of the LOPDGDD Law, the complaint was forwarded to the association, CLUB CICLISTA BTT PREMIÀ DE DALT, for analysis and to inform, within one month, about what was stated in the complaint.

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The transfer, which was carried out in accordance with the regulations established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), as certified by the Electronic Notifications Service and Electronic Address, the written request sent to the respondent party on 18/11/22, through the electronic notifications service "NOTIFIC@", was automatically rejected on 29/11/22.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, a copy was sent by postal mail for informational purposes, resulting in "Returned to Origin due to Excess", (Not collected at the office) on 23/12/22: 1st Delivery Attempt on 14/12/22 resulted in "absent". 2nd Delivery Attempt on 15/12/22 resulted in "absent". A notice was left in the mailbox.

FOURTH: On 30/12/23, the Director of the Spanish Agency for Data Protection issued an agreement to admit the processing of the complaint presented, in accordance with Article 65 of the LPDGDD, upon noting possible rational indications of a violation of the regulations within the scope of the

competencies of the Spanish Agency for Data Protection.

FIFTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to the control authorities in Article 58.1 of the GDPR and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, carrying out, among others, the following actions and being aware, among others, of the following points:

- By means of a diligence note dated 28/04/23, a telephone conversation was recorded with the phone number ***TELEFONO.1 listed as a contact on the website, <https://lapomabikepark.com/>,
- On 09/05/23, a response was received from the respondent party, in which it stated, among other matters, the following:

- o On 03/10/22, the cycling park known as “BIKEPARK LA POMA” was taken over by the entity BRAIN IN A VAT INSURANCE, S.L., which until then had been managed by the CLUB CICLISTA BTT PREMIÀ DE DALT.

- o For the management of this park, the website <https://lapomabikepark.com/> was used, which on 03/10/22 became the property of BRAIN IN A VAT INSURANCE, S.L., having been managed until that day by the “CLUB CICLISTA BTT PREMIÀ DE DALT”.

- o In this regard, the causes that led to the incident and generated the complaint consisted of the fact that, on 10/10/22, the new manager of the website had not yet updated the identifying data in the “Privacy Policy” or in the “Legal Notice” of the website in question.

- o In February 2023, the content of the website was removed, indicating since then that it is under construction (a screenshot of the website is attached); and in May 2023, the Privacy Policy and the Legal Notice of the website were updated, providing the information required by Article 13 of the GDPR, as well as that required by Article 10 of the LSSI.

- o There has been no transfer of personal data from BRAIN IN A VAT INSURANCE, S.L. (current manager of the website) to the CLUB CICLISTA BTT PREMIÀ DE DALT in any case and, specifically, regarding the form mentioned in the complaint and the inclusion of personal data contained therein in a file owned by the CLUB CICLISTA BTT PREMIÀ DE DALT, there has also been no transfer of data.

- o It should be clarified that the website mentioned the CLUB CICLISTA BTT PREMIÀ DE DALT only because the data of the website owner had not been updated.

- A copy of the Legal Notice and Privacy Policy without a date was provided. It has been verified as of 26/06/23 that these two documents appear on the website <https://lapomabikepark.com/> with the indication “Under construction”, with no mechanism in place to allow the collection of personal data from users.

SIXTH: On 28/08/23, the Director of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the respondent entity, granting a prior hearing period of ten days for it to provide any documentation or information it wished regarding the complaint presented.

SEVENTH: On 05/09/23, the respondent party submitted a written statement in which it stated the following:

FIRST. – That the Responsible party is the owner of the website https://lapomabikepark.com (hereinafter the Website) since 03/10/2022. Prior to that date, the owner of the website and therefore responsible for it had been the CLUB CICLISTA BTT PREMIÀ DE DALT. These facts were adequately reported to the AEPD by the Responsible party on 09/05/23 in response to the information request made by the AEPD, which was received by the Responsible party on 28/04/23.

SECOND. – That in response to the aforementioned request made to the Responsible party, appropriate and adequate measures were taken to comply with Article 13 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 (hereinafter GDPR). Specifically, the Responsible party updated both the Legal Notice and the Privacy Policy of the Website, reflecting the real and current identifying data of the ownership of the Website. Both texts can be observed to be...

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(<https://lapomabikepark.com>)

THIRD. – That, as a result of the measures implemented on the Web, the Responsible would be complying with the legal obligation of the duty to inform established in Article 13 of the GDPR.

Furthermore, the Responsible would also be complying with the legal obligation required in Article 10 of Law 34/2002, of July 11, on information society services and electronic commerce (hereinafter LSSI).

FOURTH. - That the Responsible considers that by virtue of the previously carried out measures and of which proof is provided (as informed in allegation SIXTH), it would be adequately fulfilling all the legal obligations required of the Responsible to comply with the legal obligation of the duty to inform the interested party mentioned and required in the resolution of the initiation of the warning procedure.

FIFTH. - That by virtue of all the above, the alleged infringement of Article 13 of the GDPR attributed to the Responsible would not exist.

SIXTH. - That to demonstrate the present allegations, the following documents are attached to this writing: • DOCUMENT 1: Legal Notice currently published on the Web of the Responsible •

DOCUMENT 2: Privacy Policy published on the Web of the Responsible. For all of this, the Responsible,

REQUESTS That the Director of the Spanish Agency for Data Protection considers this written statement of allegations and the documents and arguments presented as timely and properly submitted for the purpose of proving the non-existence of the infringement attributed to the Responsible in the agreement to initiate the warning procedure PA/00009/2023.

In view of all that has been acted upon by the Spanish Agency for Data Protection in this procedure, the following are considered proven facts,

PROVEN FACTS

First: According to the documentation and information provided by the parties, on 03/10/22 the Cycling Park known as “BIKEPARK LA POMA”, managed until then by the entity “CLUB CICLISTA BTT PREMIÀ DE DALT” was taken over by the entity “BRAIN IN A VAT INSURANCE, S.L.”.

For the management of this park, the website <https://lapomabikepark.com/> is available, but as acknowledged by the web's own responsible party, one week after taking charge of the website (on 10/10/22), they had not yet updated the identifying data in the “Privacy Policy” or in the “Legal Notice”.

Second: According to the declaration of the responsible party of the website, in February 2023, the content of the website was removed, including a banner indicating that it was in “construction phase,” and in May 2023, the information in the “Privacy Policy” and in the “Legal Notice” of the website was updated regarding the identification of the responsible party.

Third: On 26/06/23, it was verified by this Agency that, when accessing the website <https://lapomabikepark.com/>, the message “Under construction” appears overlaid, with no mechanism in place to collect personal data from users. It has also been confirmed that the identifying data of the current responsible party appears in the “Legal Notice” and in the “Privacy Policy” of the website.

LEGAL GROUNDS

I.-

Competence:

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, and 64.3 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II.-

Summary of the Facts

According to the complaint received by this Agency on 05/10/22, the respondent (BRAIN IN A VAT INSURANCE, S.L.) is responsible for the website <https://lapomabikepark.com> but in the customer registration form, in its "Privacy Policy" and in the "Legal Notice," the identifying data of an unrelated entity, the CLUB CICLISTA BTT PREMIÀ DE DALT, appeared.

As acknowledged by the current responsible party of the website, until February 2023, the website was not updated, but in that month, it changed its status to "Under Construction," and in May 2023, it modified the "Legal Notice" and the "Privacy Policy," updating it with the identifying data of the current responsible party.

As this Agency has been able to verify, on 26/06/23, when accessing the website <https://lapomabikepark.com/>, the message "Under construction" appears overlaid, with no mechanism in place to collect personal data from users. It has also been confirmed that the identifying data of the current responsible party appears in the "Legal Notice" and in the "Privacy Policy" of the website.

III.-

Information that must be provided when personal data is obtained from the interested party.

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Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, pursuant to which:

"1. When personal data relating to a data subject is obtained from the data subject, the data controller shall provide the data subject with all the information indicated below at the time the data is obtained:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of them or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time the personal data is obtained, with the following information necessary to ensure fair and transparent processing of data:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the data controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
- c) where the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the provision of personal data is a legal or contractual requirement, or a requirement

necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of failing to provide such data;

f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to further process personal data for a purpose other than that for which it was collected, it shall provide the data subject, prior to that further processing, with information on that other purpose and any pertinent additional information pursuant to paragraph 2. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

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Well, from the evidence obtained in this case, it has been established that the respondent was responsible for the website <https://lapomabikepark.com> since 03/10/22 and that, from then until February 2023, it did not proceed to modify the information in its "Privacy Policy" regarding the identification of the person responsible for it.

IV.-

Typification and Qualification of the Infraction

The corrective powers available to the AEPD, as the supervisory authority, are established in Article 58.2 of the GDPR. Among them are the power to sanction with a warning - Article 58.2 b) - the power to impose an administrative fine in accordance with Article 83 of the GDPR - Article 58.2 i) - and the power to order the controller or processor to ensure that the processing operations comply with the provisions of the GDPR, when appropriate, in a specified manner and within a specified timeframe - Article 58.2 d).

It has been proven that the facts presented violate the provisions of Article 13 of the GDPR, which could constitute an infraction typified in Article 83.5 of the GDPR, which states the following:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

b) the rights of the data subjects under Articles 12 to 22; [...]."

For the purposes of the statute of limitations for infractions, the alleged infraction prescribes after three years, in accordance with Article 72 of the LOPDGDD, which qualifies the following conduct as very serious:

1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, the infractions that constitute a substantial violation of the articles mentioned therein are considered very serious and shall prescribe after three years, particularly the following: (...) h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this organic law.

V.-

Warning

In this case, considering the circumstances present in this procedure and in accordance with the stipulations of Article 58.2.b) of the GDPR, as indicated above, and Article 64 of the LOPDGDD, which in its third paragraph states:

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"3. When appropriate, considering the nature of the facts and duly taking into account the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council,

of April 27, 2016, the Spanish Agency for Data Protection, after hearing the data controller or processor, may issue a warning, as well as order the data controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified timeframe (...)."

It is estimated that, due to the infringement of Article 13 of the GDPR, a WARNING should be directed to the website's responsible party for the time it was without updating the "Privacy Policy" of its website (from 03/10/22 until May 2023), regarding the identification of the responsible party.

Therefore, in accordance with the aforementioned, the Director of the Spanish Agency for Data Protection AGREES:

FIRST: TO WARN the entity BRAIN IN A VAT INSURANCE, S.L., with CIF: B66830100, owner of the website <https://lapomabikepark.com>, for the infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, regarding the time it was without updating the "Privacy Policy" of the website, concerning the identification of the responsible party.

SECOND: TO NOTIFY this agreement to the entity BRAIN IN A VAT INSURANCE, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure (Article 48.6 of the LOPDGDD), and in accordance with the provisions of Articles 112 and 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution, or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned legal text. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

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or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1.

They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

Mar España Martí

Director of the Spanish Agency

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